Danish Legal Guide to Surrogacy Abroad

A guide for Danish intended parents pursuing surrogacy abroad

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Legal groundwork for Danish intended parents

Denmark has recently made significant changes in this area. Previously, Danish intended parents faced a legal gap: the surrogate was treated as the legal mother regardless of genetics, and recognition at home could only be achieved through stepparent adoption, which could not begin until three months after the birth — leaving families in prolonged uncertainty.

Following a political agreement and a change to the Children's Act in force from 1 January 2025, Danish intended parents can now apply for legal parenthood of a child born through surrogacy abroad, with parenthood recognised retroactively from birth and without needing to go through adoption. This applies regardless of whether you are a heterosexual couple, a same-sex couple, or a single intended parent, provided the core conditions are met: at least one intended parent must have a genetic link to the child, and the surrogate must give notarised consent to transfer parenthood.

The relevant authority is Familieretshuset (the Danish Family Law Agency), and an application can generally be made before your child arrives in Denmark — which is a meaningful change from the old system. We strongly recommend instructing a Danish-based lawyer with direct experience of international surrogacy before your journey begins, alongside independent legal advice in your destination country. We're happy to introduce you to specialist contacts we've worked with previously — please ask your coordinator.

Before you sign: choosing your agency and clinic

Wherever in the world you pursue surrogacy, the agency and clinic you work with will shape everything that follows — including how smoothly you're able to bring your child home. Before signing anything, it's worth checking for the following:

- **Licensing and accreditation:** ask for documentary proof that the clinic holds a valid medical licence in its home country, and that the agency is properly registered to operate there.
- **Track record and references:** ask how long the agency and clinic have operated, how many births they have supported, and whether you can speak to previous intended parents.
- **A clear, itemised written contract:** in a language you're fluent in, setting out the total cost, exactly what is included (medical care, surrogate compensation or allowance where applicable, legal fees, logistics and courier costs), and what is not.
- **Surrogate welfare and independent consent:** confirmation that the surrogate has her own independent legal representation, has given fully informed consent, and receives appropriate medical and psychological care and screening throughout.
- **The legal parentage pathway, confirmed in writing:** a written explanation from the agency and clinic of exactly how legal parentage and exit documentation will be handled in that country — and independent confirmation from your own lawyer that this matches how the law actually works.
- **A written contingency policy:** what happens, in writing, if a transfer fails, a surrogate withdraws, or a pregnancy doesn't proceed — including any refund or credit policy.
- **Data protection and confidentiality:** how your personal and medical information, and the surrogate's, will be stored, used and protected.

A reputable agency and clinic should be willing to put all of this in writing without hesitation. Hesitancy, vague answers, or pressure to sign quickly are worth treating as warning signs.

The process, step by step

While each case is different, the general path for Danish intended parents now looks like this:

1. **Genetic testing:** confirming the genetic link between your child and at least one intended parent, supported by a clinic letter confirming whose gametes were used.
2. **Surrogate's notarised consent:** the surrogate provides formal, notarised consent to transfer legal parenthood to the intended parent(s).
3. **Application to Familieretshuset:** the intended parent(s) apply to the Danish Family Law Agency for legal parenthood, generally submitting the genetic test results, the surrogate's notarised consent, the local birth certificate, and the surrogacy agreement. This process can generally begin before your child travels to Denmark.
4. **Parenthood recognised from birth:** once approved, legal parenthood is recognised retroactively from the date of birth, without the need for adoption.
5. **Citizenship and passport:** with legal parenthood confirmed, your child's Danish citizenship and passport can be arranged through Borgerservice.

Because this framework is still new, requirements and processing times may continue to be refined — always confirm the current process directly with Familieretshuset and your lawyer.

Documents checklist: what to request from your agency and clinic

Bringing your child home to Denmark — and having your legal parenthood recognised once there — depends on your agency and clinic providing complete, accurate paperwork at every stage. It is your

responsibility as intended parents to check this paperwork is being gathered as you go, rather than assuming it will be available after the birth. At a minimum, ask your agency and clinic to confirm in advance that they will provide:

- A clinic letter or certificate confirming the fertility treatment provided and whose gametes (eggs, sperm or both) were used — this is central to establishing any genetic link later.
- Embryology and laboratory records tracing the embryo back to its source, to confirm no donor material was substituted without your knowledge.
- The signed and dated surrogacy agreement.
- The surrogate's notarised consent — both to the arrangement itself and, where relevant, to the transfer of legal parentage.
- The surrogate's relevant medical records for the pregnancy and birth.
- The hospital's birth notification or discharge summary.
- The original, locally issued birth certificate.
- Any local court order, administrative decision or notarial deed relevant to parentage in the country of birth.
- Contact details for a local, independent lawyer who can confirm these documents meet what your home country will require.

Keep certified copies of everything, and ask early — documents are far easier to obtain while you're still working with the clinic than after you've left the country.

We're here to help

We know that pursuing surrogacy abroad brings up practical questions and, understandably, a lot of feeling. Every family's situation is different — whether you are a heterosexual couple, a same-sex couple, or a single intended parent — and the information above is intended as a starting point rather than a complete answer to your circumstances. Please reach out to our team directly — we're glad to talk you through Danish legal requirements, answer your questions, and put you in touch with a Danish-based lawyer experienced in international surrogacy.

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